

Lr.No.66/VC.A2/93-3, dt.10.10.1994 of A.P.Vigilance Commission communicating Andhra Pradesh Vigilance Commission Procedural Instructions.

Subject Heading : Vigilance Commission - Procedural Instructions

Ref : G.O.Ms.No. 421, G.A. (SC.D) Dept., dt.03.08.1993.

In the G.O. cited, Government issued the scheme defining the powers, functions and jurisdiction of the Andhra Pradesh Vigilance Commission. To give effect to the provisions of the scheme of the Commission, a comprehensive set of procedural instructions have been drafted and approval of the Government obtained. Copies of the Andhra Pradesh Vigilance Commission Procedural Instructions as approved by Government are enclosed.

2. The procedural instructions booklet is a confidential document which may be kept in the safe custody and used strictly for official purposes only.

Enclosure :

1. Introduction

The Andhra Pradesh Vigilance Commission has been revived in G.O.Ms.No.368, GA (SC.D) Department, dated 29th June, 1993. G.O.Ms.No.421, GA (SC.D) Department, dated 3rd August, 1993, lays down the scheme of the Vigilance Commission which inter-alia provides that the Vigilance Commission has jurisdiction and powers through out the State of Andhra Pradesh in respect of matters to which the executive power of the State extends to check prevent and eradicate corruption in the public services and to deal with any complaint, information or case that public servants including members of All-India Services had exercised or refrained from exercising their powers for improper or corrupt purposes; and any complaint of corruption, misconduct, lack of integrity or other kinds of malpractices or misdemeanour on the part of the public servants.

2. Procedural instructions give effect to the scheme

The procedural instructions contained in the following paragraphs will be observed in giving effect to the scheme set out by the Government in G.O.Ms.No.421, GA (SC.D) Department, dated 3rd August, 1993.

3. Authorities to which complaints may be made

Complaints charging public servants and the servants under the employ of Government Undertakings / Government Companies and such other institutions as may be notified by Government from time to time, with corruption, lack of integrity, misconduct, malpractices or misdemeanour may be made to any of the following authorities :

- (1) The Vigilance Commission ;
- (2) The Secretaries / Principal Secretaries to Government and Chief Secretary to Government;
- (3) The Heads of Departments ;
- (4) The Director-General, Anti-Corruption Bureau ;
- (5) The Collectors of the Districts ; and
- (6) The Heads of Government Undertakings, Government Companies and such other Institutions as may be notified by the Government from time to time.

4. (a) The form of complaints and petitions

Petitions charging the public servants with corruption, lack of integrity etc. and addressed to any one of the authorities aforesaid shall ordinarily be in writing. In cases where persons give oral information, such information shall be reduced to writing by the authority or an officer designated in that behalf by the authority before which the information is laid. On the complaint being so reduced into writing it shall be read over to the informant and an endorsement or attestation of the information shall be duly taken. Where the informant is not willing or is desirous of concealing his identity, he shall not be obliged to sign or attest the information. In such cases the information shall be treated as an anonymous or pseudonymous complaint and shall be dealt with accordingly.

(b) Anonymous and pseudonymous complaints

Normally allegations contained in an anonymous petition ought not to be taken notice of except in cases where the details given are specific and, therefore, verifiable and the authority that receives such complaints may make such preliminary examination as may be necessary.

In the case of petitions which are pseudonymous in character and where a specific address has been given in the complaint it shall be open to the authority which received the petition to address a communication to the person purporting to be the sender of the petition for further information. If it transpires that there is no person of the name at the address given, then it may be considered that the petitioner's name is a pseudonym and the petition dealt with in the same manner as an anonymous petition.

(c) Complaints against public servants of known integrity

A large number of disgruntled and disappointed persons are apt to make serious allegations against public servants out of malice or frustration. Such people generally do not reveal their identity and prefer to file anonymous or pseudonymous complaints even against public servants of known integrity and good repute. Care must, therefore, be exercised in dealing with such petitions.

5. Register of complaints

There shall be maintained in the offices of the Chief Vigilance Officers, Vigilance Officers and Anti-Corruption Bureau, a permanent register of all complaints, information or cases of corruption, lack of integrity, misconduct etc. against public servants received. It shall be maintained in form No.I by the Departments of Secretariat, and in Form I-A by Collectors and Vigilance Officers of the Heads of Departments / Undertakings etc.

A register will also be maintained in the Office of the Vigilance Commission in Form No.II.

6. Complaints, information or cases received or taken notice of by the Vigilance Commission

In addition to complaints or information received directly, the Vigilance Commission may call for any complaint or case filed before the Government, Heads of Departments, the Anti-Corruption Bureau, the Collectors or Heads of Government Undertakings / Government Companies and such other Institutions as may be notified by Government from time to time, as the case may be, and take such complaint or case under its direct control or advise the concerned authorities as to further action.

7. Action to be taken on complaints, information or cases received or taken notice of by the Vigilance Commission

- a) Where it appears to the Vigilance Commission that the complaint does not contain specific, ascertainable or verifiable allegations or where the complaint contains allegations of a frivolous, fantastic or vexatious character, it shall be open to the Vigilance Commission to

direct / advise that the complaint shall be lodged and that no further action shall be taken and wherever possible the party (complainant) may be so informed.

- b) In respect of petitions, the originals of which are addressed to the Government, Heads of Departments etc. and copies thereof are received by the Vigilance Commission, it shall be open to the Vigilance Commission to enquire whether action is being taken by the authority to which the original petition was addressed or in appropriate cases take action suo motu on the copy and if deemed necessary or desirable intimate the concerned accordingly.

8. Course of action to be taken where Vigilance Commission considers it necessary

In cases where the Vigilance Commission is of the opinion that action should be taken on a complaint or information, as the case may be, the Commission may adopt any of the following courses:-

- 1) The Vigilance Commission may entrust the complaint or information for a preliminary enquiry to the administrative department of the Secretariat, to the Chief Vigilance Officer of a district or the Vigilance Officer of the Head of the Department, Government Undertaking, Government Company and such other Institution as may be notified by Government from time to time, concerned. In such cases, the Chief Vigilance Officer / Vigilance Officer concerned will immediately make a preliminary enquiry to verify the allegations and submit his report in Form III to the Vigilance Commission together with relevant records for advice as to further action to be taken.
- 2) The Vigilance Commission may, wherever it considers it expedient to do so, ask the Anti-Corruption Bureau to make a discreet and confidential (Preliminary) enquiry for ascertaining whether there are any prima facie grounds for the complaint. However, in respect of All-India Service Officers and Heads of Departments the concurrence of the Chief Secretary to Government shall be obtained before referring the case to the Anti-Corruption Bureau. Where the Anti-Corruption Bureau is requested to make a preliminary enquiry, it shall make discreet and confidential enquiries as it may consider necessary and expedient and forward a brief report containing the result of its investigation, indicating whether a regular enquiry is called for or not.

The Anti-Corruption Bureau will forward all its reports to the Vigilance Commission in duplicate in Form No.III with the least possible delay.

- 3) The Anti-Corruption Bureau will assist the Vigilance Commission in dealing with complaints of corruption etc. against public servants and the servants under the employ of Government Undertakings, Government Companies and such other Institutions as may be notified by Government from time to time.
- 4) (a) On receipt of reports of preliminary enquiries in respect of complaints against members of the All-India Services serving in connection with the affairs of the State, including Select List Officers and Heads of Departments, the Vigilance Commission shall, on a consideration of the report and other relevant records, if any, and after consultation with the Chief Secretary to Government, authorise the Anti-Corruption Bureau to conduct a regular enquiry, if in the opinion of the Commission such an enquiry by the Bureau is called for. The General Administration (SC.D) Department in respect of Indian Administrative Service Officers including Select List Officers. General Administration (SC.C) Department in respect of Indian Police Service Officers including

Select List Officers and General Administration (IFS) Department in respect of Indian Forest Service

Officers including Select List Officers will be kept informed in such cases. If, however, a regular enquiry is considered not necessary, the Commission will advise the Chief Secretary to Government as to the further action to be taken.

- b) On receipt of reports of preliminary enquiries in respect of complaints against public servants other than members of the All-India Services including Select List Officers and Heads of Departments the Vigilance Commission shall, on a consideration of the report and other relevant records, if any, direct the Anti-Corruption Bureau to conduct a regular enquiry if in the opinion of the Commission such an enquiry by the Bureau is called for. In such cases the Vigilance Commission will intimate the fact to the General Administration (SC.F) Department and the concerned Department, Government Undertaking / Government Company and such other Institution as may be notified by Government from time to time. If, however, it is considered that a regular enquiry by the Bureau is not necessary, the Commission will advise the concerned Departments etc. as to the further action to be taken.
- c) The final report of enquiry by the Anti-Corruption Bureau shall be forwarded to the Chief Secretary to Government in respect of enquiries against members of All-India Services and Select List Officers through the Vigilance Commission with an advance copy to the Chief Secretary to Government. In respect of others, the final report of enquiry shall be forwarded to the concerned Principal Secretary / Secretary to Government or the Head of the Government Undertaking / Government Company or such other Institution as may be notified by the Government from time to time, through the Vigilance Commission, with advance copy to the General Administration (SC.F) Department and the concerned Principal Secretary / Secretary to Government. In cases involving employees of Government Undertakings etc. advance copies may be sent to the Head of Government Undertaking etc. also. The Chief Secretary to Government / Principal Secretary to Government / Secretary to Government / Head of the Department / Undertaking may forward his comments, if any, to the Commission within two weeks from the date of receipt of the copy of the report from the Anti-Corruption Bureau.
- d) The Regular / Final enquiry reports referred to in sub-clauses (a), (b) and (c) above shall be furnished to the Commission in Form No.VIII in duplicate and copies sent to the concerned as laid down in the said sub-clauses.
- 5) In cases investigated into by the Anti-Corruption Bureau, suo-motu or otherwise, where the Director General, Anti-Corruption Bureau, is satisfied that there is a case for criminal prosecution, he shall forward his report of enquiry in duplicate in Form No.VIII together with other relevant records, if any, to the administrative department of Secretariat / Undertaking etc. concerned through the Vigilance Commission with a copy to the administrative department of Secretariat and to the Head of the Department / Undertaking / Company and an advance copy to the General Administration (SC.F) Department. The administrative department of the Secretariat/Head of the Department / Undertaking / Company shall, on receipt of the copy of the report of the Anti-Corruption Bureau, forward its/his comments, if any, to the Vigilance Commission within two weeks from the date of its receipt by the Department / Head of the Department / Undertaking / Company. The departments of Secretariat, while forwarding their comments, shall indicate the designation of the authority empowered to sanction prosecution.

- 6) In all cases where the Commission, after considering the regular/final reports, advises for launching criminal prosecution, the concerned Principal Secretary / Secretary to Government or the concerned Head of the Government Undertaking etc. shall take action to issue sanction of prosecution within a period of forty five (45) days from the date of receipt of the regular / final report with the advice of the Commission.
- 7) In the case of All-India Service Officers serving in connection with the affairs of the State Government, Central Government's sanction is required for prosecution, under Section 19(1) of the Prevention of Corruption Act, 1988. It would be appropriate that before moving the Central Government for sanction in such a case, the State Government should themselves take a firm decision that, in their opinion, a case for prosecution is made out and they should either issue their sanction under section 197 Criminal Procedure Code or they should, before moving the Central Government, obtain the firm orders of the competent authority in the State Government hierarchy that the State Government would issue their sanction simultaneously with the Central Government's decision to sanction the prosecution under the provisions of the Prevention of Corruption Act, 1988. There is otherwise also the risk that courts may take a view, that the State Government had not really applied its mind before according sanction in terms of section 197 Cr.P.C., in case the State Government's sanction just follows the Central Government's sanction under the provisions of the Prevention of Corruption Act. This might result in a lacuna leading to the legal proceedings being quashed or held up. (Note : Amendment under way as per sub-para (7))
- 8) Where the Vigilance Commission is of the opinion that the case does not warrant the filing of a criminal prosecution, it may advise the Government to refer to the Tribunal for Disciplinary Proceedings for enquiry and report under Section 4 of A.P.C.S. (Disciplinary Proceedings Tribunal) Act, 1960.
 - a) cases relating to Gazetted Officers including Select List Officers in respect of matters involving misconduct ; and
 - b) cases relating to Non-Gazetted Officers involving corruption / integrity, enquired into by Anti-Corruption Bureau including cases of misappropriation / embezzlement investigated by Anti-Corruption Bureau or emanating otherwise and which are considered not appropriate for prosecution in a Court of Law. (Note : Amendment is under way as per cl.(b))
- 9) The Departments of Secretariat, shall, while referring cases to Tribunal for Disciplinary Proceedings for enquiry, send a copy of such reference to the Vigilance Commission. In all cases, the final report of the Tribunal for Disciplinary Proceedings shall be sent to the Vigilance Commission in duplicate together with all the relevant records by the administrative department of the Secretariat for its advice both before arriving at the provisional conclusion and after receiving the representation of the delinquent officer and before arriving at a final conclusion in respect of the penalty to be imposed on the Government Servant concerned. The Vigilance Commission will examine the record and forward the same to the concerned administrative department of Secretariat with advice as to further action. A copy of the final orders issued by the Government in all such cases shall be furnished to the Vigilance Commission.
- 10) Where the Vigilance Commission is of the opinion that a case does not warrant filing of criminal prosecution or inquiry by the Tribunal for Disciplinary Proceedings, as the case may be, it (the

Commission) may advise for taking departmental action in accordance with the procedure laid down in the A.P.C.S. (CCA) Rules, 1991, against the officers concerned, both Gazetted including Select List Officers and Non-Gazetted. After conclusion of the inquiry, the concerned department shall forward to the Vigilance Commission a report of its conclusion together with relevant records for such advice as the Vigilance Commission may think fit to give on a consideration of the conclusions of the disciplinary authority and the relevant records in the case.

- 10) (a) In cases relating to All-India Service Officers where the Vigilance Commission is of the opinion that a case does not warrant filing of criminal prosecution, the Commission may advise for taking Departmental action in accordance with the procedure laid down in All-India Services (D&A) Rules, 1969. After conclusion of the inquiry, the concerned Department shall forward to the Vigilance Commission a report of its conclusion together with relevant records for such advice as the Commission may think fit. (Note: Amendment under way, as per sub-para (10)(a))
- 11) In respect of reports against servants in the employ of Government Undertakings etc. the Vigilance Commission may, if satisfied that a criminal prosecution is inexpedient, direct the head of the Undertaking etc. to conduct necessary departmental enquiry. The advice of the Vigilance Commission shall be obtained after the conclusion of the departmental enquiry, regarding the findings on the delinquency and the penalty to be imposed on the charged officer, both before arriving at the provisional conclusion and after receiving the representation of the delinquent officer. The result of the action taken on the advice of the Vigilance Commission by the Head of the Undertaking etc. shall be reported to the Vigilance Commission together with a copy of the proceedings of orders issued in the case.
- 12) In cases investigated by the Anti-Corruption Bureau suo-motu or otherwise, where the Director General, Anti-Corruption Bureau, is satisfied that there is case for taking action other than criminal prosecution, he shall forward his report in duplicate in Form No.VIII together with other relevant records, if any, to the administrative Department of Secretariat/ Undertaking etc. concerned through the Vigilance Commission with a copy to the administrative department of the Secretariat and to the Head of the Department / Undertaking etc. and an advance copy to the General Administration (SC.F) Department. In the report, the Anti-Corruption Bureau may suggest whether the delinquent officer may be placed on his defence before the Tribunal for Disciplinary Proceedings or he may be proceeded against departmentally without indicating the specific penalty to be imposed. The administrative department of Secretariat/ Head of the Department / Undertaking etc. shall, on receipt of the copy of the report of the Anti-Corruption Bureau, forward its/his comments, if any, to the Vigilance Commission within two weeks from the date of its receipt by the administrative department of Secretariat/Head of the Department / Undertaking etc. On consideration of the report of the Anti-Corruption Bureau, the Commission will advise the Department/ Undertaking etc. on the nature of the proceedings to be instituted.
- 13) The Vigilance Commission will take action to eliminate the chances of Government Servants having to face parallel enquiries by the various authorities referred to in paragraph 3 above on the same or substantially the same material, as far as possible. However, when the Anti-Corruption Bureau is conducting an enquiry / investigation, no other authority shall cause parallel enquiry / investigation, without obtaining the advice of the Vigilance Commission.

9. Complaints, information or cases received by the Departments of Secretariat, Heads of Departments / Government Undertakings / Government Companies and such other

institutions as may be notified by the Government from time to time, Collectors and the Anti-Corruption Bureau

- a) Complaints of corruption, misconduct, misdemeanour, lack of integrity etc. against Government Servants received by the Departments of Secretariat, Heads of Departments/ Government Undertakings / Government Companies and such other institutions as may be notified by Government from time to time, Collectors, and the Anti-Corruption Bureau, or referred to them by the Vigilance Commission, shall be dealt with by them. Complaints received by them shall be examined in the first instance in the manner provided for in paragraph 4 above. In order to decide whether or not a detailed probe into a complaint is necessary, a prima-facie case should exist. For this purpose, the authority concerned shall conduct a preliminary enquiry. At the preliminary enquiry an attempt should be made to enquire into the allegation or a substantial part thereof with the help of available records or by discreetly contacting persons, if any, referred to in the complaint. The report of the preliminary enquiry shall be sent to the Vigilance Commission in duplicate in form No.III for advice as to the further action.
- b) Complaints referred to the Chief Vigilance Officers / Vigilance Officers etc. by the Vigilance Commission shall be enquired into by the officer to whom they are referred. If, for any reason, the authority concerned considers that he cannot enquire into it / them himself, he should return the complaint to the Vigilance Commission with the reasons therefor and suggest the manner in which the complaint may be enquired into.
- c) The Chief Vigilance Officers in the departments of the Secretariat will be the link between the Vigilance Commission and the department in which they function as Chief Vigilance Officers. They shall be responsible for helping the Vigilance Commission in unearthing corruption in the respective departments. They shall bring to the notice of the Vigilance Commission such practices or procedures which in their opinion give or likely to give rise to corruption, malpractices or lack of integrity on the part of the members of the establishment in their respective departments.
- d) The Chief Vigilance Officers shall conduct enquiries into allegations against the members of the staff under their charge either on a complaint received by them or by the Principal Secretary / Secretary to Government or on a reference by the Vigilance Commission. The Chief Vigilance Officers shall have the right to conduct the enquiry against any Government servant in their departments irrespective of the fact whether he is under the administrative jurisdiction of the Chief Vigilance Officer as Deputy Secretary / Joint Secretary / Additional Secretary to Government. In conducting the enquiry the Chief Vigilance Officers will have the right to call for any file or document, including the property statements and confidential files of the persons concerned. They shall also have the right to examine the files of the person concerned. They shall also have the right to examine persons orally. If, in the course of conducting the enquiry, it appears to the Chief Vigilance Officer that it will be more advantageous to have the investigation conducted by the Anti-Corruption Bureau he shall have the power with the concurrence of the Principal Secretary / Secretary to Government of the Department concerned to refer the case to the Anti-Corruption Bureau under intimation to the Vigilance Commission. After the conclusion of the enquiry referred to supra, the Chief Vigilance Officer should forward his report in duplicate in Form No.III to the Vigilance Commission with the comments of the Principal Secretary / Secretary to Government, if any. In exercising their powers and

performance of duties, the Chief Vigilance Officers shall carry out the advice and instructions given by the Vigilance Commission from time to time.

As far as may be, all correspondence between the Vigilance Commission and the concerned departments of Secretariat shall be initiated, conducted and routed through the Chief Vigilance Officer, so that the provision of the scheme that the office of the Chief Vigilance Officer shall be the link between the department of Secretariat and the Vigilance Commission may be fully effectuated.

e) Complaints relating to subordinate and attached offices :

Where a complaint of corruption, malpractice or lack of integrity on the part of a member of the staff of a subordinate or attached office or Government Undertaking or Government Company or such other

Institution as may be notified by Government from time to time is received by the Chief Vigilance Officer, he shall call upon the concerned Vigilance Officer to make an investigation and furnish a report to him. On receipt of the report from the Vigilance Officer concerned, the Chief Vigilance Officer shall forward that report to the Vigilance Commission in duplicate together with the comments, if any, through the Principal Secretary / Secretary to Government for advice as to further action.

f) The Vigilance Officers shall not be directed to make investigations into allegations against officers drawing higher pay or belonging to a higher cadre than the Vigilance Officer himself. In such cases, the Chief Vigilance Officer himself shall conduct the enquiry. The Chief Vigilance Officer shall have the right to comment upon the work of the Vigilance Officers and give them advice, guidance and instructions, from time to time.

10. Complaints received by Collectors

Collectors, as Chief Vigilance Officers for their respective jurisdictions, may receive complaints not only against the officers and subordinates of the Revenue Department but also against those of other departments within their territorial jurisdiction. In respect of complaints against Gazetted Officers, the Collector shall himself conduct a preliminary enquiry and in respect of complaints against Non Gazetted Officers, he may direct the concerned Revenue Divisional Officer or the concerned District Head of the Department to enquire into the allegations and submit a report. The District Head of Departments shall render all necessary assistance and co-operation to the Collectors in this regard. The report of the preliminary enquiry of the Collector and/or those furnished by the Revenue Divisional Officers or District Heads of Departments shall be forwarded in duplicate in Form No.III to the Vigilance Commission together with his recommendation as to further action. If the Collector considers that he is unable to conduct a preliminary enquiry or direct his subordinate or district head of department concerned to conduct a preliminary enquiry or is of the view that an enquiry by the Anti-Corruption Bureau is called for, he shall forward the complaint together with any relevant records to the Vigilance Commission with his views as to further action.

11. Complaints received by the Anti-Corruption Bureau

- a) In all cases referred to or received by it, the Anti-Corruption Bureau shall conduct such discreet and open enquiries as it may consider necessary and expedient and forward its reports to the Vigilance Commission with its findings and recommendations in duplicate for orders as to the further action to be taken.
- b) In the course of a preliminary enquiry where the Anti-Corruption Bureau is satisfied that there is material for a regular enquiry, it shall do so with the concurrence of the Vigilance

Commission. At any stage of the preliminary enquiry if the Anti-Corruption Bureau is satisfied that there exists a case for launching criminal prosecution, or there is the likelihood of collecting evidence to deal with the officer, the Bureau shall register a case and proceed with the investigation so as to obviate the necessity of going through the same process of enquiry / investigation once again and the resultant delay and exclude the possibility of witnesses being won over or evidence disappearing or being tampered with.

12. Reports of the Anti-Corruption Bureau

- a) All reports of preliminary enquiry conducted by Anti-Corruption Bureau shall be forwarded by it to the Vigilance Commission in duplicate in Form No.III. A copy of such report shall also be forwarded by the Bureau simultaneously to the General Administration (SC.F) Department and concerned department / Government Undertaking / Government Company and such other Institution as may be notified by Government from time to time.

Provided that in cases taken up by the Anti-Corruption Bureau suo motu and in which the finding of the Bureau is that there is no basis to proceed further in the matter, the Preliminary / Discreet Enquiry reports shall be forwarded only to the Vigilance Commission in duplicate for advice.

- b) On completion of investigation and open or regular enquiry, the Director General, Anti-Corruption Bureau, should send his final report to Government, through the Vigilance Commission in two parts, i.e. parts 'A' and 'B' in duplicate. Part 'A' should contain a secret report given in complete confidence containing full particulars of the investigation for the information of the Government, and Part 'B' should contain confidential report of only relevant information and also the statements of witnesses to be communicated by Government to the Head of the Department or the Tribunal for Disciplinary Proceedings for taking further action. The duplicate copy of Part 'B' and the statements of witnesses should not contain any signature or indication as to who took the statements. The Vigilance Commission will forward the original copy of Part 'A' and both copies of Part 'B' (together with the statements of witnesses) with its advice to the administrative department concerned

The Director General, Anti-Corruption Bureau should also send simultaneously a copy of Part 'A' to the concerned administrative department for any comments which it may wish to forward to the Commission. Similarly, a copy of Part 'A' should be sent to the Chief Secretary to Government, General Administration (SC.F) Department for information.

13. Procedure in the case of complaints against All-India Services Officers and Heads of Departments

a) Complaints against AIS Officers / HODs

No complaint against a member of the All-India Services including select list officers and Heads of Departments shall be referred to the Anti-Corruption Bureau for enquiry without prior consultation with the Chief Secretary to Government.

b) Procedure in the case of complaints against Gazetted Officer

The Vigilance Commission shall be consulted in respect of all complaints against Gazetted Officers which are received by the Departments of Secretariat, Heads of Departments, Collectors etc.

- (i) If in any case the administrative authority does not think that a preliminary enquiry is necessary, the complaint together with the views of the administrative authority shall be forwarded to the Vigilance Commission for its advice.
- (ii) When an authority has, after a preliminary enquiry, come to the conclusion that no further action is necessary, the report of such enquiry together with the relevant records and the views of the administrative authority shall be forwarded to the Vigilance Commission for its advice.
- (iii) Where the administrative authority proposes, after a preliminary enquiry, to initiate disciplinary proceedings, the report of the preliminary enquiry, together with other relevant records, shall be forwarded to the Vigilance Commission for advice as to the further action to be taken.

14. Traps

- a) In extreme cases of public servants who are notoriously corrupt and against whom charges of corruption cannot be easily booked in the usual way unless there is a direct trap, the Anti-Corruption Bureau may resort to laying of traps using its discretion well in choosing cases for laying traps. In respect of All-India Services Officers including select list officers and Heads of Departments, the Director General, Anti-Corruption Bureau shall obtain prior permission of the Chief Secretary to Government before laying a trap.
- b) After the trap is laid, and the public servant concerned is arrested, the Anti-Corruption Bureau shall forthwith inform the Vigilance Commission, the Chief Secretary to Government, the authority competent to suspend the delinquent officer, and the immediate superior authority of the delinquent officer, and send the preliminary report within a week from the date of laying the trap.
- c) The Anti-Corruption Bureau should strive to successfully deal with complaints of corruption etc. against the higher ranks and organised rackets of bribery and corruption in the Services, instead of concentrating mostly on complaints of petty corruption.

15. Powers of ACB to collect information, register cases etc.

The Anti-Corruption Bureau will have full powers of collecting source information against all officers. Permission for preliminary or regular enquiries or registration of cases or laying traps should be given by the Director General, Anti-Corruption Bureau personally and not by any other functionary as laid down in Government Memo.No.163/SC.D/83-2, G.A.(SC.D) Dept., dated 30th March, 1983 read with Memo.No.163/SC.D/83-3, G.A.(SC.D) Dept., dated 10th June, 1983. However, in respect of All-India Services Officers including select list officers and Heads of Departments permission of Chief Secretary for conducting preliminary or regular enquiry or for registering cases shall be obtained through the Vigilance Commissioner.

16. Assistance to the Vigilance Commission, Chief Vigilance Officers, Vigilance Officers and the Anti-Corruption Bureau

- a) The Heads of Departments or officers concerned shall, when called for, normally furnish the relevant official records for reference to the requisitioning officer, viz., the Vigilance Commissioner (or a Gazetted Officer in the Commission authorised by the Vigilance Commissioner), Chief Vigilance Officers, Vigilance Officers, the Director General, Anti-Corruption Bureau or a Gazetted Officer of the Anti-Corruption Bureau in respect of cases against Gazetted Officers and an Inspector of Police or his equivalent in rank in the Anti-Corruption Bureau in respect of cases against the Non-Gazetted Officers duly authorised in this behalf. Provided, in case of extremely confidential or privileged documents, orders of the Government shall be taken before the records are handed over to the requisitioning authority.

The records of Government may be furnished for reference if requisitioned by the Vigilance Commission or the Director General, Anti-Corruption Bureau if these records are relevant and are strictly essential for the purpose of investigation. As Government records often contain minutes of Ministers, Cabinet decisions, etc. they should not be made available without sufficient justification.

- b) The Heads of offices whose assistance is sought shall render such assistance to the Vigilance Commission, or to the officers of the Anti-Corruption Bureau, as may be required by the investigating officers, in connection with the enquiries.

17. Secrecy

If an informant desires that his name shall not be published, care shall be taken by the Vigilance Commission, Department, Government Undertaking, Government Company and such other institution as may be notified by Government from time to time, the Anti-Corruption Bureau, or the Collector, as the case may be, to see that there is no disclosure of the informant's identity.

18. Protection of certain persons

(Note : Not printed)

19. Statement of Returns

- 1) Every department of Secretariat, Head of Department, Government Undertaking, Government Company and such other Institution as may be notified by Government from time to time and the District Collectors shall forward to the Vigilance Commission the following statistical returns every six months as on 31st March and 30th September of every year, so as to reach the Vigilance Commission by the 15th of the succeeding month :
- (i) Statement showing the disposal and pendency of complaints regarding corruption, appeals or memorials in connection therewith, in Form No.IV ;
 - (ii) Statement showing the details of public servants under suspension for more than 6 months in Form No.V ; and
 - (iii) Details of cases referred to the Tribunal for Disciplinary Proceedings, reports received from the Tribunal for Disciplinary Proceedings and their disposal and cases pending at the end of each quarter with reasons therefor in Form No.VI.

- 2) The Anti-Corruption Bureau shall submit six monthly / annual reports on the progress and disposal of enquiries undertaken and criminal prosecutions filed in Courts of Law as on 30th September / 31st March of every year so as to reach the Commission by 15th of succeeding month in Form No.VII. The Anti-Corruption Bureau shall also send to the Commission monthly progress reports in the form of an abstract by 15th of every month.

20. Procedure in respect of Government Undertakings etc.

The procedure in regard to entertainment of complaints, the furnishing of statistical information and reports referred to in the foregoing paragraphs shall mutatis-mutandis apply to the Government Undertakings, Government Companies and such other Institutions as may be notified by Government from time to time under the control of the State Government. The Departments of Secretariat and General Administration (PE) Department will issue suitable procedural instructions to the said Undertakings etc. with a copy to the Vigilance Commission.

21. Chief Vigilance Officers and Vigilance Officers

- a) No Officer against whom there have been any punishments or against whom allegations of misconduct are pending investigation shall be nominated as Chief Vigilance Officer or Vigilance Officer, as the case may be.
- b) It is enough to have Vigilance Officers in the Offices of Heads of Departments for the present. It is not necessary to have Vigilance Officers at the Regional, District, Mandal and lower levels. The Collector, who is the Chief Vigilance Officer of the district, will function without any Vigilance Officers.
- c) All changes regarding transfers, leave etc. of the Chief Vigilance Officers and Vigilance Officers in any department / undertaking etc. should be intimated to the Vigilance Commission as soon as they take place.

22. Correspondence with the Vigilance Commission

Correspondence with the Vigilance Commission shall be in the form of a letter. Correspondence of a routine character may, however, be addressed to the Secretary to the Vigilance Commissioner by a letter. Similarly the Vigilance Commission will address the Government, the Heads of Departments, Collectors etc. by a letter.

23. Blacklisting of Firms

Any proposal to blacklist a Firm or to withdraw a blacklisting order shall be referred to the Vigilance Commission for advice before issue of final orders. In any case, it shall be competent for the Vigilance Commission to suggest suo motu the blacklisting of any Firm, contractor or supplier.

24. False complaints against public servants

Where, in the opinion of the Vigilance Commission, any person has made intentionally or knowingly a false complaint against a public servant or an employee of Government Undertaking, Government Company or any other Institution notified by Government from time to time, charging him with corruption or lack of integrity, or after making the complaint there is reason to believe that he acted in a manner jeopardising the course of inquiry, it shall be lawful for the Commission to advise the Government / concerned authority to prosecute the person or the persons who such a complaint.

(Note : Forms not printed)